

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

January 11, 2024

**Judge Melissa R. McCormick
Dept. CX104**

Department CX104 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5304. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Bond v. KPG Healthcare LLC 2020-01140084	<u>Plaintiff's Motion for Final Approval of Class Action Settlement and Motion for Award of Fees and Costs</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a class action settlement and motion for awards of fees and costs. The court has the following questions and comments:

		1. The Garcia Declaration (ROA 155, ¶ 6) states that the settlement administrator received one “valid” for exclusion. Were any other exclusion requests, “valid” or otherwise, received? The settlement administrator should provide a supplemental declaration addressing this question. 2. The Garcia Declaration (ROA 155, ¶ 7) states that the settlement administrator received one objection form (from Michael James Vann), and that the settlement administrator determined that Vann is not a class member and had returned an objection form sent to class member Candace Coleman. The Garcia Declaration states that the settlement administrator deemed Vann’s objection invalid because Vann is not a class member. Did the settlement administrator contact Coleman and determine whether Coleman wanted to object? Did the settlement administrator determine why Vann returned Coleman’s objection form and/or what Vann’s relationship, if any, is to Coleman? The settlement administrator should provide a supplemental declaration addressing these questions. 3. Were any disputes received? The settlement administrator should provide a supplemental declaration addressing this question. 4. What was the net settlement amount? The settlement administrator should provide a supplemental declaration addressing this question. 5. What was the response deadline? What was the response deadline for remailed notices? Have any disputes, objections or requests for exclusion been received since the settlement administrator executed the declaration (ROA 155) on December 13, 2023? The settlement administrator should provide a supplemental declaration addressing these questions. 6. As the proposed order and judgment, the following issues should be addressed: a. The proposed order and judgment should revised as necessary to be consistent with the above; b. In paragraph 1, the reference to the settlement agreement should also refer to the amendment to the settlement agreement; c. Because the settlement agreement and amendment to the settlement agreement are attached as an exhibit to the proposed order and judgment, the parties should consider whether it would be preferable to cite the relevant section of the settlement agreement
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		and/or amendment to the settlement agreement rather than setting forth the text in paragraph 4; and d. The proposed order and judgment must state how notice of entry of the order and judgment will be provided. The hearings on plaintiff's motion for final approval and motion for award of fees and costs is continued to <u>April 18, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief and other supporting documents shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. Plaintiff is ordered to give notice and to file a proof of service at least 5 court days before the hearing.
2	Danforth v. Placentia-Linda Hospital, Inc. 2023-01321351	Off calendar.
3	Martinez v. EM Tortillas, LLC 2022-01263512	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$225,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 2. Is the "Plaintiff's General Release Payment" (Settlement Agreement ¶ 18) in addition to the "enhancement payment" sought in the motion for approval? The "Plaintiff's General Release Payment" appears to be a payment to settle plaintiff's individual claims in exchange for plaintiff's release. <i>See id.</i> The enhancement payment described in the motion appears intended to compensate plaintiff for her efforts working on the litigation. If

		plaintiff seeks an enhancement payment, why is \$10,000 an appropriate amount? 3. Do the parties intend for the PAGA Members to be able to dispute the number of pay periods? If so, the settlement agreement (and notice) should be amended to address the dispute procedure. <u>As to the notice:</u> 4. The notice should revised as necessary consistent with the above. 5. The notice should include the gross settlement amount, the net settlement amount, and the portions allocated to the LWDA and the aggrieved employees. The notice should also explain how the individual payments were calculated. 6. The notice should advise the aggrieved employees that they cannot opt out of the settlement and that even if they do not cash their checks they will be bound by the release. 7. The settlement administrator's declaration (Lawrence Declaration, ROA 50) states the settlement administrator's fees will not exceed \$2,500 (<i>id.</i> ¶ 17 & Ex. B). Plaintiff's motion states the settlement administrator's fees will not exceed \$4,000. Plaintiff should address this discrepancy in her supplemental papers. 8. The settlement administrator's invoice (Lawrence Decl. (ROA 50) Ex. B) states a language translation will be prepared. Will the notice be translated into a language other than English? If so, a certified copy of the translated notice (together with the English-language copy) should be attached to the proposed order as an exhibit. <u>As to the proposed order and judgment:</u> 9. The proposed order and judgment should be revised as necessary consistent with the above. 10. Counsel's contact information should be removed from the caption page of the proposed order and judgment. 11. "Dept. C13" should be deleted on the caption page and "Department CX104" should be inserted. 12. In paragraph 2, "he" and "his" should be "she" and "her." 13. The proposed order and judgment should include the names of all of the parties to the settlement.
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		14. Paragraph 18 should include a reference to Civil Procedure Code section 664.6. 15. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. <u>Status Conference</u> The court has read and considered plaintiff's case management conference statement filed December 21, 2023 (ROA 59). In light of the court's concurrent ruling on plaintiff's motion for approval of a PAGA settlement, the January 11, 2024 status conference is vacated. Clerk to give notice.
4	Mora v. Diamond ZB Staffing Services, LLC, et al. 2019-01104920	<u>Plaintiff's Motion for Issue, Evidentiary and Monetary Sanctions</u> Plaintiff Marisela Mora seeks issue and evidentiary sanctions against defendant Diamond ZB Staffing for allegedly violating the court's February 16, 2023 order (Judge Peter Wilson, ROA 260) and August 17, 2023 order (Judge Peter Wilson, ROA 435) directing Diamond ZB to provide Code-compliant responses, including document production, to plaintiff's Requests for Production (Set Two) Nos. 4, 5 and 6. Plaintiff seeks monetary sanctions in the amount of \$9,810 against Diamond ZB and its counsel, Michael Adreani and Chinye Uwechue of Roxborough, Pomerance, Nye and Adreani, LLP, jointly and severally. For the

		following reasons, plaintiff's motion is granted in part and denied in part. <i>Issue and evidentiary sanctions</i> Plaintiff asserts Diamond ZB has not complied with the court's February 16, 2023 and August 17, 2023 orders. Plaintiff argues Diamond ZB's most recent further responses to Request Nos. 4, 5 and 6 (Jusuf. Decl. Ex. 16, ROA 495), served in response to the August 17, 2023 order, do not comply with that order and, despite the court's instructions in its prior orders, remain deficient. The court has granted two prior motions to compel further responses to Request Nos. 4, 5 and 6. In its February 16, 2023 order, the court ruled: "RPD Nos. 1-6: These requests seek time records for Plaintiff and the other non-exempt employees at Capital Logistics, and thus seek documents that are relevant and reasonably calculated to lead to the discovery of admissible evidence. "Defendant's objections based on attorney-client privilege, work product and third-party privacy have no merit. The time records may be redacted to remove any personal identifying information, and/or may be subject to the stipulated protective order. Additionally, it is not apparent what attorney-client privileged information and/or work product would be included in time records. ROA 191, Sep. Stmt., pp. 1-11. "Defendant's argument that these requests are duplicative since it produced 32 pages of Plaintiff's personnel records is without merit. ROA 191, Sep. Stmt., pp. 1-11. The 32 pages did not contain time records for Plaintiff or any other non-exempt employee. ROA 199, Jusuf Decl., ¶12 and Ex. 11. "The Motion is GRANTED, and Defendant is Ordered to supplement its responses and produce records within 15 days. If there are any documents withheld on the basis of privilege, Defendant must also produce a privilege log identifying for each document the specific privilege asserted, within 15 days." 2/16/23 Order (ROA 260). In its August 17, 2023 order, the court ruled: "The Motion to Compel is GRANTED. Defendant is ordered to provide Code-compliant, verified responses to RPD Nos. 4, 5 and 6 without objection, except for privilege, within 10 days. To be clear, the responses should not attempt to reassert any objection that the Court already found to be without merit in its 2/16/2023 Minute Order or contain prefatory, boilerplate objections. If privilege is asserted, then Defendant must identify the specific privilege asserted and produce a privilege log. If Defendant will
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		not produce a privilege then the reason for not doing so must be provided. "RPD Nos. 4, 5, and 6 seek Defendant's time records. "Defendant contends it has fully responded to RPD Nos. 4, 5 and 6, and provided verified supplemental responses and produced documents on June 7 and 13, 2023. ROA 401, ¶11, p. 5 and Exs. H and I. The same responses were re-served on July 12, 2023. ROA 420, Reply, p. 7:1-2 and Uwechue Decl., ¶10 and Ex. H. "The responses are deficient and fail to comply with the Court's 6/15/2023 Minute Order. Each of these responses include prefatory boilerplate language reasserting objections that the Court already found to be without merit in its 2/16/2023 Minute Order. Although Defendant was permitted to assert privilege, the basis for the privilege has not been identified. Moreover, Defendant improperly asserts CCP § 2030.230 in response to RPDs when that Code section has no application and may only be used in response to interrogatories. "Importantly, the responses also violate CCP §§ 2031.220, 2031.230 and 2031.240. Specifically, Defendant was required to respond by (1) agreeing to comply, (2) representing it is unable to comply, or (3) objecting to all or part of the demand. (Code Civ. Proc. § 2031.010.) If Defendant can only comply with a part of the RPD, then it must so state and produce responsive documents sorted and labeled to correspond with the categories in the document demand. (Code Civ. Proc. §§ 2031.220 and 2031.280 (a).) If Defendant is unable to comply in whole or in part, then it must so state and provide the reason why, such as the document never existed, has been lost or stolen, destroyed, or is not in its possession, custody or control and provide the name and address of the person who may have the document. (Code Civ. Proc. § 2031.230.) "The responses state that time cards / records in Defendant's possession have been produced but does not identify if Defendant is complying in whole or in part. Defendant also does not represent an inability to comply in whole or in part. But as Plaintiff points out, the RPDs seek time cards from October 1, 2018 through December 30, 2022 and Defendant has only produced records pertaining to four months, i.e. September – December 2019. ROA 411, Jusuf Decl., ¶¶14-15, 25, 26 and Exs. 13 and 14. Defendant must state whether it will comply or has an inability to comply and the reason why as to October 2018 – August 2019 and January 2020 – December 2020. Whether Defendant has such records is significant because its response to SI No. 17 indicates Defendant should have time cards which have not been produced. The unredacted hire list produced in response to SI No. 17 shows employees were hired for Capital's Riverside location at least by March 2019 and as late as February 2020 despite the representation in Defendant's interrogatory
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		responses that it did not have employees in California after December 2019. See ROA 401, ¶¶3-8, pp. 2-5, Ex. B [e.g. Armando Becerra and Francisco Becerra, hire dates 2/14/2020; Christopher Bonaminio, hire date 3/12/2019; Robert Carver, hire date 3/19/19] and Ex. E2. "Similarly, Defendant must state whether it will comply and produce records showing meal periods and rest breaks from October 1, 2018 – December 2022, or if it has an inability to comply and the reason why." 8/17/23 Order (ROA 435). Plaintiff seeks issue and evidentiary sanctions pursuant to Civil Procedure Code sections 2023.030(b) and 2023.030(c), which provide: "To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: . . . (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence." Civ. Proc. Code §2023.030(b), (c). Disobeying a court order to provide discovery is a misuse of the discovery process. Civ. Proc. Code § 2023.010(g). Civil Procedure Code sections 2031.310 and 2031.320 also provide for imposition of issue, evidence, or terminating sanctions "[i]f a party fails to obey an order compelling further response" (§ 2031.310(e)), or "[i]f a party then fails to obey an order compelling inspection" (§ 2031.320(c)). Although willfulness is not necessary to impose nonmonetary sanctions for disobedience of a court order (<i>see, e.g., New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403, 1423; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991), it is a factor to consider in determining the appropriate sanction to impose. <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796. Other factors include: the time that has elapsed since the discovery was served, the importance of the
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		information sought, whether the unanswered questions sought information that was difficult to obtain, the responding party's failure to comply with prior court orders, and whether allowing more time to respond would enable the responding party to provide the necessary information. <i>Id.</i> In addition, a court's decision on sanctions must be consistent with the public policies regarding discovery sanctions, i.e., enabling the propounding party to obtain the information sought rather than punishing a disobedient party, and not imposing sanctions solely for punishment (<i>Ghanooni v. Super Shuttle of Los Angeles</i> (1993) 20 Cal.App.4th 256, 262); compensating the propounding party for fees and costs incurred in enforcing discovery (<i>Deyo</i>, 84 Cal.App.4th at 262); and not imposing a sanction that would the propounding party more than it would have obtained had the responses been provided (<i>Caryl Richards, Inc. v. Superior Court</i> (1961) 188 Cal.App.2d 300, 303 (striking party's pleadings because of evasive interrogatory answers was excessive); <i>Rutledge v. Hewlett-Packard Co.</i> (2015) 238 Cal.App.4th 1164, 1195 (requested sanctions of "sweeping evidentiary conclusions" would have improperly provided windfall by relieving party of burden to prove liability theory)). Defendant's September 5, 2023 further responses (Jusuf Decl. Ex. 16, ROA 495) do not comply with the August 17, 2023 order. The responses still include prefatory, boilerplate objections and reassert objections the court already found to be inapplicable. See 8/17/23 Order ("To be clear, the responses should not attempt to reassert any objection that the Court already found to be without merit in its 2/16/2023 Minute Order or contain prefatory, boilerplate objections."). The responses still state that all of the timecards/records in Diamond ZB's possession have been produced, but do not state whether Diamond ZB is complying in whole or in part (Civ. Proc. Code §§ 2031.220), and do not provide the name and address of any person or organization who may have the document (Civ. Proc. Code § 2031.230). Diamond ZB provides no explanation for continuing to assert prefatory, boilerplate objections in light of the court's express instructions. It also provides no explanation for its failure to provide Code-complaint further responses, i.e., further responses that comply with all applicable sections of the Code of Civil Procedure, including sections 2031.220 and 2031.230, again despite the court's express instructions. Diamond ZB's conduct certainly warrants monetary sanctions, as discussed below. Diamond ZB's inexplicable conduct notwithstanding, Diamond ZB's verified September 5, 2023 further responses state that Diamond ZB has not withheld any documents responsive to Request Nos. 4, 5 or 6 from production, and that Diamond ZB cannot produce additional responsive documents because it does not have any more responsive documents. Jusuf Decl. Ex. 16,
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		ROA 495. As such, plaintiff has obtained from Diamond ZB the information she requested with Request Nos. 4, 5 and 6, i.e., all of the responsive time records in Diamond ZB's possession, and a verification attesting that Diamond ZB has produced all responsive documents, has not withheld any responsive documents from production, and has no more responsive documents. The court thus finds no basis to impose the issue and evidentiary sanctions plaintiff seeks. <i>Monetary sanctions</i> Plaintiff also seeks monetary sanctions in the amount of \$9,810 (\$9,750 in attorneys' fees and a \$60 filing fee). Monetary sanctions may be awarded pursuant to Civil Procedure Code section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Civ. Proc. Code § 2023.030(a). As discussed above, Diamond ZB offers no justification, much less substantial justification, for its failure to comply with the court's orders that it provide Code-complaint further responses and that it not assert prefatory, boilerplate objections. Diamond ZB's conduct caused plaintiff to incur time and expense revisiting issues the court had twice previously addressed. A substantial portion of plaintiff's motion focuses on Diamond ZB's failure to provide Code-compliant further responses and assertion (again) of prefatory, boilerplate objections—despite the court's prior orders. Accordingly, plaintiff's motion for monetary sanctions against Diamond ZB and its counsel Michael Adreani and Chinye Uwechue of Roxborough, Pomerance, Nye and Adreani, LLP, jointly and severally, is granted. Diamond ZB and its counsel are ordered to pay plaintiff \$7,560 (15 hours x \$500 per hour + \$60 filing fee) in monetary sanctions within 30 days. Plaintiff to give notice. <u>Defendant Diamond ZB Staffing Services, LLC's Motion for Relief from Waiver and Motion for Protective Order</u> Defendant Diamond ZB Staffing Services, LLC moves pursuant to Civil Procedure Code sections 128(a)(8) and 473(b) for relief from its waiver of objections to plaintiff Marisela Mora's Requests for Production of Documents (Set Three) (the "Third Set") by failing to serve timely responses. Diamond ZB also moves for a protective order relieving it from providing substantive responses
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		and document production in response to Request Nos. 1, 2, 3, 4, 6, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25 and 26 in plaintiff's Third Set. For the following reasons, Diamond ZB's motions are denied. Plaintiff served Diamond ZB by email with the Third Set on August 9, 2023. Diamond ZB's responses were due on September 12, 2023. Diamond ZB served untimely responses and objections on September 14, 2023. Diamond ZB's counsel asserts she miscalendared Diamond ZB's response date while preparing to travel outside the United States. Counsel states in her declaration: "On September 7, 2023, I received an email from Mr. Jusuf Mr. Jusuf sent the email on the very day I was scheduled to travel abroad. I had a plane to catch and packing to complete. I calendared what I believed at the time was the deadline to respond to Plaintiff's Request[s] for Production (Set Three) and left the office." Uwechue Decl. (ROA 509) ¶ 10. Counsel further states: "When I returned to the US (while catching up with emails and my workload) I prepared objections and responses to Plaintiff's Request for Production (Set Three) based on what I had calendared on September 7, 2023. It was not until I received Mr. Jusuf's email on Friday, September 15, 2023, that I realized that I had miscalendared the deadline to respond to the requests." <i>Id.</i> ¶ 11. The statements in Diamond ZB's counsel's declaration contradict her August 25, 2023 email to plaintiff's counsel, in which Diamond ZB's counsel stated: "Sept 8, 2023, is our deadline to respond to the RFP set 3" Jusuf Decl. (ROA 685) Ex. 2. As an initial matter, neither section 128(a)(8) nor section 473(b) provides authority for relief from waiver of objections for failure to file timely discovery responses. <i>See Zellerino v. Brown</i> (1991) 235 Cal.App.3d 1097, 1107 ("Relief under section 473 is unavailable when the discovery act provides analogous, if more limited, relief."). Section 2031.300(a) addresses relief from waiver of objections due to untimely responses to requests for production: "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: "(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product The court, on motion, may relieve that from
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		this waiver on its determination that both of the following conditions are satisfied: “(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” Civ. Proc. Code § 2031.300(a). Diamond ZB has not demonstrated that either required condition for relief pursuant to section 2031.300(a) has been satisfied. Diamond ZB’s responses and objections to the Third Set, attached as Exhibits G and H to the Uwechue Reply Declaration, are not in substantial compliance with sections 2031.210, 2031.220 and 2031.230. For example, Diamond ZB served its responses and objections in two documents, and therefore the responses and objections are not “in the same sequence as the corresponding item or category in the demand.” Civ. Proc. Code § 2031.210(c). As another example, the responses to Request Nos. 5, 7, and 27 do not contain a statement that Diamond ZB will comply with the particular demand for inspection or a representation that Diamond ZB lacks the ability to comply with the demand for inspection. <i>Id.</i> § 2031.210(a). Diamond ZB’s failure to serve Code-compliant responses to requests for production has been addressed in a prior court order (see 8/17/23 Order (ROA 435)), and is again addressed in the court’s concurrent order on plaintiff’s motion for issue, evidentiary and monetary sanctions. Nor does Diamond ZB’s counsel’s declaration demonstrate that Diamond ZB’s failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. Counsel sent an email on August 25, 2023 stating Diamond ZB’s responses were due on September 8, 2023. A month later counsel filed a declaration in support of Diamond ZB’s motion for relief from waiver stating that on September 7, 2023 counsel calendared “what [she] believed at the time was the deadline to respond to Plaintiff’s Request[s] for Production (Set Three) and left the office.” In neither of her declarations filed in support of this motion does counsel explain her statement in her August 25, 2023 email that Diamond ZB’s responses were due on September 8, 2023, or state what response date she allegedly calendared on September 7, 2023, or state what date she “believed at the time” was Diamond ZB’s deadline to respond. On this record, the court cannot conclude that Diamond ZB’s tardy responses were the result of mistake, inadvertence or excusable neglect. Diamond ZB filed its protective order motion on September 15, 2023, after Diamond ZB had served its untimely responses and objections to the Third Set. In its protective order motion,
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		Diamond ZB recasts its waived objections as grounds for a protective order relieving Diamond ZB from any obligation to serve responses to 24 of the 27 requests for production in the Third Set. Specifically, Diamond ZB argues the 24 requests (i) seek irrelevant information, (ii) violate individual and corporate privacy rights, (iii) seek trade secret, proprietary, and/or competitive information, (iv) seek information in the public record or otherwise equally available to plaintiff, (v) are overbroad, burdensome and oppressive, (vi) seek attorney-client privileged information, and/or (vii) seek information protected by the attorney work product doctrine. Diamond ZB raised each of these objections in its untimely responses and objections to the Third Set. See Jusuf Decl. (ROA 683) Exs. 5 & 6. Diamond ZB cannot revive its waived objections by filing a protective order motion restating the same objections after it waived them. If Diamond ZB could successfully assert waived objections as grounds for a protective order filed after it waived the objections by serving untimely responses, its waiver of objections—a circumstance expressly provided for in the Discovery Act (see Civ. Proc. Code § 2031.300(a))—would be meaningless. The circumstances here are nothing like those in <i>Stadish v. Superior Court</i> (1999) 71 Cal.App.4th 1130, 1143-44, where the responding party sought a protective order restricting dissemination of documents it produced after waiving its objections and producing most of the documents requested. See also <i>Nativi v. Deutsche Bank Nat'l Trust Co.</i> (2014) 223 Cal.App.4th 261, 317 (“Appellants’ motion for a protective order was not untimely as a matter of law because it was made after the order compelling further deposition and production, <i>especially since it was contesting the dissemination of the documents, not their production.</i>”) (emphasis added). In contrast to <i>Stadish</i> and <i>Nativi</i>, Diamond ZB contests the production of the documents, not the dissemination of documents it has already produced. Diamond ZB’s requests for judicial notice in its opening and reply briefs in support of the motion for relief from waiver are denied. See Cal. R. Ct. 3.1113(/) (“Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c).”). Plaintiff’s request for sanctions in her opposition to Diamond ZB’s protective order motion is denied. Plaintiff to give notice.
5	Olmos v. Mall Food Management Associates, LLC	<u>Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for

	2019-01096292	preliminary approval of a class action and PAGA settlement. The court grants the motion as follows: \$10,000.00 for enhancement payment to plaintiff (not to exceed); \$122,500.00 for attorneys' fees (not to exceed 35% of gross settlement amount); \$18,000.00 for litigation costs (not to exceed); \$8,000.00 for settlement administration costs (not to exceed); and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The parties shall provide the following in the motion for final approval: 1. Plaintiff must present a full report to the court of all exclusions, objections and disputes received. The court will consider any objections at the final approval hearing. 2. The court has wide discretion in assessing the reasonableness of fees, including basing fees on the percentage of fund method, conducting a lodestar crosscheck on a percentage fee, or foregoing a lodestar crosscheck and using other means to evaluate the reasonableness of a requested percentage fee. <i>Laffitte v. Robert Half Int'l Inc.</i> (2016) 1 Cal.5th 480, 506. The parties must include sufficient information in the motion for final approval to enable the court to conduct a lodestar crosscheck, such as billing records and documentation of costs. 3. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. <i>Barnes, Crosby, Fitzgerald & Zeman, LLP v. Ringler</i> (2012) 212 Cal.App.4th 172, 184; Cal. R. Ct. 3.769(b). 4. In order for the court to determine the appropriate amount of plaintiff's enhancement at final approval, plaintiff should submit a declaration addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272 and <i>Clark v. American Residential Servs., LLC</i> (2009) 175 Cal.App.4th 785, 804, including an estimate of the hours spent on this litigation. 5. The settlement administrator should provide an estimated high and low for individual settlement payments, and plaintiff's individual payout. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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6	Sandoval v. Rod Fraser Enterprises, Inc., et al. 2023-01338232	<u>Defendants Rod Fraser Enterprises, Inc. and Roderick A. Fraser II's Motion to Compel Arbitration</u> Defendants Rod Fraser Enterprises, Inc. (RFE) and Roderick A. Fraser II move to compel arbitration of plaintiff Jose Sandoval Camarena's first amended complaint. For the following reasons, defendants' motion to compel arbitration of plaintiff's individual PAGA claims is granted, plaintiff's nonindividual PAGA claims are stayed pending completion of the arbitration, and plaintiff's class claims are dismissed without prejudice. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>The 2020 arbitration agreement binds plaintiff</i> Plaintiff contends defendants cannot enforce the 2020 arbitration agreement against him because he did not sign the 2020 agreement and because defendants' human resources manager (HRM) led him to believe he did not have to arbitrate any disputes with defendants. The cover memorandum accompanying the 2020 arbitration agreement states: "By continuing your employment with RFE after receiving notice of this notice, you have agreed to the terms and conditions of the Arbitration Program." Fraser Decl. Ex. B (at 1). The 2020 arbitration agreement states: "2. <u>Condition of Employment.</u> A condition of employment at RFE is that all employees and RFE must agree to arbitrate their disputes pursuant to the Arbitration Program. This document provides you with notice of the Arbitration Program. By continuing your employment with RFE after receiving notice of the Arbitration Program, you have agreed to the terms and conditions of the Arbitration Program." Fraser Decl. Ex. B (at 2, ¶ 2). Plaintiff does not dispute he signed an acknowledgement that he received the 2020 arbitration agreement. See <i>also</i> Fraser Decl. Ex. C. Plaintiff also does not dispute he continued working at RFE after receiving the 2020 arbitration agreement. "California law in this area is settled: when an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement." <i>Diaz v. Sohnen Enterprises</i> (2019) 34 Cal.App.5th 126, 130.
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		Plaintiff instead asserts that a week after receiving the 2020 arbitration agreement he called RFE's HRM and told her he would not sign the agreement. Sandoval Camarena Decl. ¶ 11. Plaintiff asserts the HRM told him to submit his signed copies of the employee handbook, the attendance policy, and the meal period waiver, together with the unsigned arbitration agreement. <i>Id.</i> Plaintiff states the HRM also told that she would "call [him] back if RFE required all employees to sign the 2020 [arbitration] Agreement," but that she never called him back. <i>Id.</i> Plaintiff asserts that based on the lack of a further telephone call, and the fact that nobody else ever contacted him about not signing the 2020 arbitration agreement, he concluded he "was no longer required to arbitrate future disputes with RFE." <i>Id.</i> Even crediting plaintiff's description of the events involving RFE's HRM, those events did not render the 2020 arbitration agreement unenforceable against plaintiff. The 2020 agreement and the memorandum accompanying it state that by continuing his employment with RFE after receiving notice of the arbitration agreement, plaintiff agreed to the terms and conditions of the arbitration agreement. The HRM had no reason to call plaintiff to tell him whether "RFE required all employees to sign the 2020 [arbitration] agreement." By the terms of the 2020 arbitration agreement, RFE did not require all employees to sign the arbitration agreement. An employee who received notice of the arbitration agreement and thereafter continued working at RFE impliedly consented to the agreement, whether the employee signed the agreement or not. Plaintiff does not dispute that he received notice of the arbitration agreement and thereafter continued working at RFE. Thus, on this record, the failure of the HRM (or anyone else at RFE) to contact plaintiff about his decision not to sign the 2020 arbitration agreement does not render the agreement unenforceable against plaintiff. For these same reasons, plaintiff's contention that his conversation with the HRM extinguished the 2020 arbitration agreement by novation fails. "Novation is a contractual doctrine. In general the parties to a contract are free to determine for themselves their respective rights and liabilities so long as the purposes and effects of their agreement are lawful. (Civ. Code, § 1636.) The parties to an existing contract may, through mutual consent, modify or rescind their agreement. (Civ. Code, §§ 1689, subd. (a), 1697, 1698.) A novation is the substitution of a new obligation for an existing one. (Civ. Code, § 1530.) Essential to a novation is that it 'clearly appear' that the parties intended to extinguish rather than merely modify the original agreement. [Citations.] The burden of proof is on the party asserting that a novation has been consummated." <i>Howard v. County of Amador</i> (1990) 220 Cal.App.3d 962, 977. Plaintiff's claim that the HRM's conduct demonstrates RFE intended to extinguish the arbitration agreement does not carry plaintiff's burden because, among other reasons, the HRM's conduct was not inconsistent with the language of the agreement. Likewise,
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		the HRM’s conduct does not demonstrate, or even indicate, RFE intended to rescind the 2020 arbitration agreement. <i>Bayer v. Neiman Marcus Holdings, Inc.</i> (N.D. Cal. 2011) 2011 WL 5416173, a nonbinding federal district court case, is distinguishable. Unlike plaintiff here, the <i>Bayer</i> plaintiff did not sign a required acknowledgement form acknowledging receipt of the arbitration agreement. Plaintiff does not contend that, if the 2020 arbitration agreement can be enforced against him, the agreement does not encompass his individual PAGA claims. Accordingly, and for the foregoing reasons, defendants’ motion to compel arbitration of plaintiff’s individual PAGA claims is granted. <i>The Federal Arbitration Act applies</i> Defendants argue the FAA applies. Section 2 of the Federal Arbitration Act (FAA), 9 U.S.C. § 2, applies to any “written provision in . . . a contract evidencing a transaction involving commerce.” The arbitration agreement provides that the FAA applies to any arbitration under the agreement. The agreement states: “The Parties agree that RFE is engaged in transactions involving interstate commerce, and this Arbitration Program shall be subject to the substantive and procedural provisions of the Federal Arbitration Act, 9 U.S.C. §§ 1, et seq.” Fraser Decl. Ex. B (at 3, ¶ 11). In addition, defendants have presented evidence that RFE engages in interstate commerce. Fraser Decl. ¶¶ 1, 8. Plaintiff does not dispute that the FAA applies, and has not objected to—or addressed—defendants’ evidence of interstate commerce. Accordingly, the court finds the FAA applies. <i>The class action waiver is enforceable</i> The 2020 arbitration agreement contains a class action waiver. See Fraser Decl. Ex. B (at 3, ¶ 9). As discussed above, the FAA applies. The class action waiver is therefore enforceable. See, e.g., <i>Viking River Cruises v. Moriana</i> (2022) 142 S.Ct. 1906, 1918 (“a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party <i>agreed</i> to do so”) (italics in original); <i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); <i>Evenskaas v. California Transit, Inc.</i> (2022) 81 Cal.App.5th 285, 297-98. Plaintiff’s class claims are dismissed without prejudice. <i>Plaintiff’s nonindividual PAGA claims are stayed</i>
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		Defendants argue plaintiff's nonindividual PAGA claims should be stayed pending completion of the arbitration of plaintiff's individual PAGA claims. Plaintiff opposes. <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal.5th 1104 does not require a stay of nonindividual PAGA claims pending arbitration of individual PAGA claims. The court has discretion, however, to stay a court action when an issue involved in the case is ordered to arbitration. <i>Adolph</i>, 14 Cal.5th at 1123-24. The court elects to exercise its discretion to stay the court action pending completion of the arbitration. That procedure avoids the possibility of, e.g., inconsistent determinations of whether plaintiff does or does not have standing under PAGA, i.e., whether plaintiff did or did not suffer a Labor Code violation during employment. A decision about the potential preclusive effect of an arbitration ruling on the court action here is premature. Defendants' Request for Judicial Notice, submitted with defendants' reply, is denied. The superior court action is stayed pending completion of the arbitration. An ADR Review hearing is scheduled for <u>July 11, 2024 at 9:00 a.m.</u> in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing. Defendants to give notice. <u>Status Conference</u> In light of the court's concurrent ruling on defendants Rod Fraser Enterprises, Inc. and Roderick A. Fraser II's motion to compel arbitration, the status conference scheduled for January 11, 2024 at 2:00 p.m. in Department CX104 is vacated. Clerk to give notice.
7	Surby v. ARB, Inc. 2021-01194784	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$90,000 PAGA

		settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? The email confirmation from the LWDA that plaintiff submitted with the moving papers (Ackerman Decl. (ROA 151) Ex. 7) refers only to the "proposed settlement." Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 3. The Release by Aggrieved Employees in paragraph 5.2 of the settlement agreement is overbroad because it includes "all claims where suspected or unsuspected, contingent or accrued, known or unknown, that have been pled or could have been pled under state, federal or local law, whether statutory, common law or administrative, arising out of or related to allegations set forth in Plaintiff's PAGA Notices, the Action, and Plaintiff's Complaint and First Amended Complaint, and arising during the PAGA Period." The Release by Aggrieved Employees must be limited to claims for civil penalties based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. 4. Please provide a description of the expected high, low and average payments to the Aggrieved Employees, and the expected amount to be received by plaintiff (excluding any incentive award). 5. Do the parties intend for the Aggrieved Employees to be able to dispute the number of pay periods? If so, the settlement agreement (and the notice) should be amended to address the dispute procedure. 6. Why is an incentive award appropriate and, if it is, why is \$7,500 a reasonable amount? 7. Plaintiff seeks \$12,625.84 in costs, including legal research and postage costs. Plaintiff should provide legal authority supporting an award of legal research and postage costs. <u>As to the notice:</u> 8. The notice should revised as necessary consistent with the above.
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		9. The notice should explain what PAGA is and provide a more detailed explanation of the allegations and the claims being released. 10. The notice should include the gross settlement amount, the net settlement amount, and the portions and percentages allocated to the LWDA and the aggrieved employees. The notice should also explain how the individual payments are calculated. 11. The notice should advise the Aggrieved Employees that they cannot opt out of the settlement and that even if they do not cash their checks they will be bound by the release. 12. The settlement administrator's estimate (Ackerman Decl. (ROA 151) Ex. 6) states only English-language documents will be provided. Should the notice be translated into a language other than English? If so, a certified copy of the translated notice (together with the English-language copy) should be attached to the proposed order as an exhibit. 13. The notice should provide a clearer description of the tax treatment of the payments to the Aggrieved Employees. <u>As to the proposed order and judgment:</u> 14. The proposed order and judgment should be revised as necessary consistent with the above. 15. The settlement agreement, any amendment to the settlement agreement, and the notice (including any certified translation) should be attached to the proposed order and judgment as exhibits. 16. The proposed order and judgment should state that capitalized terms have the same meaning as in the settlement agreement. 17. The proposed order and judgment should identify the settlement administrator and state that the settlement administrator is ordered to make the disbursements in accordance with the terms of the settlement agreement. 18. The proposed order and judgment should state that the court has approved the settlement as fair, reasonable and adequate. 19. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the
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		hearing addressing the status of the settlement administration, including the actual amounts paid to the Aggrieved Employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	Velasquez v. Team Blaze 2021-01187932	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for preliminary approval of a class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? The Hyun Declaration (ROA 92, ¶ 13) states plaintiffs' counsel served some of the motion papers on the LWDA, but there is no proof of service and no evidence plaintiffs' counsel served, e.g., the declarations in support of the motion on the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. Plaintiffs' PAGA letter(s) to the LWDA must be submitted to the court. <u>As to the settlement:</u> 3. The class definition should be limited to employees in California consistent with the complaint and the definition of PAGA Group. 4. Paragraph III.42 of the settlement agreement seeks up to \$200,000 in attorneys' fees, while paragraph IV.47(f) seeks up to \$199,980 in attorneys' fees. 5. Paragraph III.41 requires payments to "the recipients designated herein" within 15 calendar days of the final payment, which appears to create ambiguity and/or

		conflict with paragraphs III.42, III.43, III.44, and VI.64 which set forth different payment schedules for the recipients of disbursements. 6. Why are the individual settlement payments to the PAGA Group Members calculated based on Workweeks (Settlement Agreement ¶ VI.61(a)) when PAGA penalties are assessed based on pay periods? 7. The definitions of “Released Claims” and “Released PAGA Claims” are overbroad and should be revised. The parties should review <i>Amaro v. Anaheim Arena Management LLC</i> (2021) 69 Cal.App.5th 521, 537-38 for its guidance regarding the permissible scope of the releases. The releases must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the complaint (and, for the PAGA claims, the notice letter(s) to the LWDA). Neither “Class Claims” nor “PAGA Claims” (Settlement Agreement ¶¶ VI.69, VI.70) is defined in the settlement agreement. In addition, the Released Claims include a release of claims for attorneys’ fees “relating in any way to those claims alleged and mentioned in the complaint(s) and/or PAGA Notice,” which appears to include plaintiffs’ counsel’s request for attorneys’ fees in this motion. At best, when read together with paragraph VI.69 of the settlement agreement (“except as to such rights or claims as may be created by this Settlement Agreement”), the settlement agreement is ambiguous regarding plaintiffs’ counsel’s request for attorneys’ fees in this motion. 8. Plaintiffs must provide further information regarding their valuation of the claims, including the size of the class upon which the valuations are based, the actual calculations for each claim, the discounts (if any) given on each claim, and the number or percentage of class members with arbitration agreements. 9. There is no explanation as to why the allocation for PAGA penalties is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future violations, and maximize enforcement of state labor laws. <i>See Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. 10. Why was a sampling of 8.5% of the putative class (Hyun Decl. (ROA 92) ¶ 8) sufficient to extrapolate to the entire putative class? In addition, how was the sample set selected, e.g., randomly by plaintiffs and/or plaintiffs’ expert, randomly by defendants, from one store or across all stores? What is the margin of error for the sampling?
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		11. Why are defendants' settlement payments structured in six payments over three years? If defendants' financial condition impacted the decision to structure the payments in this manner, the parties must submit evidence regarding defendants' financial condition. 12. The court favors a 60-day deadline for submitting exclusions, objections and disputes. Do special circumstances warrant a shorter period here? 13. Legal authority is not required for written objections. See Settlement Agreement ¶ VI.56. 14. The parties should file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes. The settlement agreement should be revised to state that the court may review any decision made by counsel or the settlement administrator regarding a claim dispute. 15. The settlement agreement states requests for exclusions and objections must be submitted by mail; the settlement agreement does not provide a method by which disputes should be submitted. The notice states disputes may be submitted by mail, fax or email. It is preferable for the same method(s) of submission apply to requests for exclusion, objections, and disputes. 16. Please provide a description of the expected high, low and average payments to class members, and the expected amount to be received by each plaintiff (excluding any enhancement award). 17. What is the deadline(s) for exclusions, objections and disputes for remailed notices? 18. The settlement agreement should provide that the settlement administrator will conduct a skip trace on returned checks as well as returned mail. 19. The settlement administrator should post on its website all key case documents, including the operative complaint, the PAGA notice letter(s), the settlement agreement and any amendments thereto, the notice packet, the orders granting preliminary and final approval, and the judgment. The judgment should be posted on the settlement administrator's website for at least 180 days. 20. The parties should advise the court whether, after reasonable inquiry, they are aware of any related pending actions or other cases that may be impacted by the settlement. 21. The settlement administrator's bid should be submitted.
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		<u>As to the class notice:</u> 22. The class notice should be revised consistent with the above. 23. The applicable court department should be updated throughout the notice. In section 8, the parties should propose a date and time for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. 24. The title of the notice, first paragraph, and throughout the notice should refer to the PAGA action as well as the class action. 25. Terms defined in the settlement agreement should be used in the notice. In addition, the terms used in the settlement agreement and the notice should be consistent. E.g., the settlement agreement refers to the aggrieved employees as PAGA Group Members, but the notice uses the term Aggrieved Employees. 26. In the first paragraph, "(Class Members)" should be moved to after "the Class Period (September 26, 2018 to [date])." 27. The box on page 3 of the notice and section 4 paragraph 2 state that the individual PAGA payments will be calculated based on pay periods. These statements are inconsistent with paragraph VI.61(a) of the settlement agreement which states that the individual settlement payments to the PAGA Group Members will be calculated based on Workweeks. 28. Section 3 paragraph 5 of the notice should be revised to inform recipients that checks will be valid for 180 days from the date of issuance rather than until the "void date." 29. Section 3 paragraph 6 states that the settlement administrator will resolve workweek disputes. Section 4 paragraph 8 states that the settlement administrator will resolve disputes and that its decisions are "final" and cannot be appealed or challenged. The latter language should be removed, and both sections should be revised to state that the court may review any decision made by counsel or the settlement administrator regarding a claim dispute. 30. The notice and exclusion form should advise class members who opt out that they will still be bound by the release of the PAGA claims.
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		<u>As to the proposed order:</u> 31. The proposed order should be revised consistent with the above. 32. The attorney information on the caption page should be removed and the judge and department updated throughout the document. Paragraph 11 should include the court address. 33. The settlement agreement and the class notice packet (including the certified Spanish-language translation, see Settlement Agreement ¶ I.27) should be attached to the proposed order as exhibits. 34. At page 1 line 1, "Plaintiff" should be "Plaintiffs." The hearing date at page 1 line 4 should be updated. 35. The last sentence in paragraph 1 (beginning "The Settlement Agreement . . .") should be deleted as it is duplicative of paragraph 10. 36. In paragraph 7, insert "conditionally" between "Court" and "appoints." 37. In paragraph 8, insert "preliminarily" between "hereby" and "approves." 38. Paragraph 11 should include a proposed final approval hearing date. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. 39. The proposed order should include the deadlines for class data to be provided to the settlement administrator and for the settlement administrator to send the notices to the class. 40. Paragraph 14 should state that PAGA Group Members and Class Members who are PAGA Group Members cannot opt out of the PAGA settlement. Paragraph 14 should state the deadline for requests for exclusion and the deadline for requests for exclusion for remailed notices. 41. Paragraph 15 should include the deadline for remailed notices. 42. The method and deadlines for submitting disputes should be included in the proposed order. 43. Paragraph 16 should require the motion for final approval to be served on the LWDA. 44. Paragraph 17, which states the releases take effect on the Effective Date, contradicts paragraphs VI.69 and VI.70 of the settlement agreement. The court will not require the
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		Class Members and PAGA Group Members to release their claims until defendants have fully funded the settlement. 45. The definition of the PAGA Period should be included in the proposed order. The hearing on plaintiffs' motion for preliminary approval is continued to <u>April 25, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. <u>Status Conference</u> The court has reviewed the parties' joint status conference report filed December 29, 2023 (ROA 110), and based thereon and on the court's concurrent ruling on plaintiffs' motion for preliminary approval of a class action and PAGA settlement, continues the January 11, 2024 status conference to April 25, 2024 at 2:00 p.m. in Department CX104. The parties are ordered to file a joint status conference report at least five court days before the hearing. Clerk to give notice.
9	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Attorney Gabrielle Muniz's Motion to Appear Pro Hac Vice</u> Attorney Gabrielle Muniz moves to appear pro hac vice for defendants and cross-complainants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, and Matthew T. O'Rourke. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It properly sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to her good standing. The application states there has been one prior application in California state court in the last two years. Attorney Ziemianek attests that the motion has been served on the State Bar of California at its San

		Francisco address and that the application fee has been paid. Cal. R. Ct. 9.40(c)-(e). Defendants and cross-complainants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, and Matthew T. O'Rourke to give notice. <u>Status Conference</u> The status conference scheduled for January 11, 2024 at 2:00 p.m. remains on calendar.
10	Pickell v. Growthpoint Global, Inc. 2023-0135444	<u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed January 8, 2024 (ROA 81), and based thereon continues the January 11, 2024 status conference to March 21, 2024 at 2:00 p.m. in Department CX104. The parties are ordered to file a joint status conference report at least 5 court days before the hearing. Clerk to give notice.